

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

----- X
MONAE GRANT,

Plaintiff,

-against-

THE CITY OF NEW YORK, a municipal entity;
Lieutenant ERIC DYM (in his individual capacity);
Police Officer ELENA PELENGARIS (in her individual
capacity),

Defendants.
----- X

SUMMONS

Index No.:

Date Purchased: Nov. 19, 2020

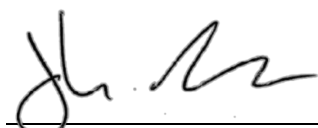
To the above-named defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' attorney within **20** days after the service of this summons, exclusive of the day of service (or within **30** days after service of this summons if not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Plaintiff designates Bronx County as the place of trial. The basis of venue is the location of the events giving rise to the claims.

Dated: New York, New York
November 19, 2020

THE LAW OFFICE OF JOSHUA MOSKOVITZ
233 Broadway, Suite 2220
New York, New York 10279
(212) 380-7040

By: 

Joshua S. Moskowitz

Defendants' addresses:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Lieutenant ERIC DYM
Police Service Area 7
737 Melrose Avenue
Bronx, New York 10455

Police Officer ELENA PELENGARIS
Police Service Area 7
737 Melrose Avenue
Bronx, New York 10455

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capacity),Defendants.
----- X**COMPLAINT**

JURY TRIAL DEMANDED

Index No.:

Plaintiff MONAE GRANT, by and through her attorney, Joshua S. Moskovitz, Esq.,
alleges as follows:

PRELIMINARY STATEMENT

1. On August 22, 2019, New York City Police Department Lieutenant Eric Dym falsely arrested Monae Grant and used excessive and unreasonable force, which caused substantial and likely permanent injuries to Ms. Grant. There was no legal justification for Lt. Dym to arrest Ms. Grant – she was doing nothing more than sitting and talking with friends on a warm summer evening outside of her apartment building.

2. Lt. Dym has a long history of complaints involving similar misconduct. He has been sued at least twelve times (not counting this lawsuit) – six times in federal court and as many in state court – and he has been named in at least nineteen civilian complaints, which included forty separate allegations of misconduct, twelve of which were for unlawful use of force. All of those lawsuits and civilian complaints were filed against Lt. Dym before he falsely arrested and assaulted Ms. Grant.

3. In an effort to cover-up Lt. Dym's conduct, Officer Elena Pelengaris, an officer in Lt. Dym's command, falsely accused Ms. Grant of committing disorderly conduct. There was no basis for the charge and the criminal case was later dismissed. Officer Pelengaris also issued Ms. Grant two civil summonses falsely accusing her of being in a park after hours and drinking an alcoholic beverage, neither of which was true. At an administrative hearing, an OATH officer heard Ms. Grant's testimony, found her credible, and dismissed both civil summonses.

4. The City's abject failure to properly supervise Lt. Dym reflects a deliberate indifference to his misconduct and the constitutional rights of the people of the Bronx who he has harmed.

5. Ms. Grant brings this case to vindicate her civil and constitutional rights, to seek compensation for her substantial injuries, and to stop Lt. Dym from continuing to violate the rights of other residents of the Bronx.

JURISDICTION

6. This action is based on violations of Plaintiff's rights under the New York State Constitution and common law, and 42 U.S.C. § 1983 for violations of Plaintiff's federal constitutional rights.

7. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

VENUE

8. Venue is proper in Bronx County pursuant to C.P.L.R. § 503(3) as this is an action against the City of New York and its officers, and Bronx County is where the events giving rise to this action took place.

JURY DEMAND

9. Plaintiff demands a trial by jury in this action on each and every one of her claims for which jury trial is legally available.

THE PARTIES

10. Plaintiff MONAE GRANT is a citizen of the United States and of the State of New Jersey.

11. Defendant THE CITY OF NEW YORK (“the City”) is a municipal entity created and authorized under the laws of the State of New York.

12. The City is authorized by law to maintain a police department and does maintain the New York City Police Department (hereinafter referred to as “NYPD”). The NYPD acts as the City’s agent and the City assumes the risks incidental to the maintenance of a police department and the employment of police officers.

13. Defendants NYPD Lieutenant ERIC DYM and Police Officer ELENA PELENGARIS were, at all relevant times, employed by the City and acted under color of law in the course and scope of their duties and authority as officers, agents, servants, and/or employees of the NYPD and the City. They are sued in their individual capacities.

14. At all relevant times, defendants Dym and Pelengaris violated Plaintiff’s clearly established rights under the Fourth and Fourteenth Amendments to the United States Constitution and Article 1 §§ 1 and 12 of the New York State Constitution, of which reasonable law enforcement officers in their respective circumstances would have known were violations of Plaintiff’s rights.

COMPLIANCE WITH NEW YORK GENERAL MUNICIPAL LAW

15. Plaintiff served a Notice of Claim upon the City by electronic means, as prescribed by the Office of the New York City Comptroller, on November 4, 2019.

16. Plaintiff received confirmation that her Notice of Claim was received by the New York City Comptroller's Office.

17. Defendant City examined Plaintiff pursuant to New York General Municipal Law § 50-h on January 23, 2020.

18. More than thirty days have elapsed since the Notice of Claim was served, and the City has neglected or refused to adjust or pay said claims.

19. This action is filed within one year and ninety days of the events giving rise to Plaintiff's claims.

STATEMENT OF FACTS

20. The evening of August 22, 2019, Plaintiff Monae Grant was sitting with friends on a bench outside of her apartment building, known as the John Adams Houses, located at 700 Westchester Avenue in the Bronx.

21. Plaintiff was not committing a crime, was not threatening anyone, and was not acting disorderly.

22. The area where Plaintiff and her friends were sitting is open to the public, is not a park, and is not a space with limited hours.

23. Defendant Eric Dym and other New York City Police Department officers confronted plaintiff and her friends.

24. Defendant Dym demanded that Plaintiff provide identification.

25. Defendant Dym had no legal authority to demand that Plaintiff produce her identification.

26. Defendant Dym's hostile manner scared Plaintiff and she said she would provide her identification to a female officer who was present.

27. Defendant Dym grabbed Plaintiff and pulled her right arm up behind her body beyond the point where it could move freely.

28. Plaintiff could feel a sudden pain and heard a pop in her elbow.

29. Defendant Dym applied handcuffs to Plaintiff.

30. Plaintiff had committed no offense, and had not resisted arrest in any manner.

31. Defendant Dym had no lawful basis to arrest Plaintiff.

32. Plaintiff had never been arrested before.

33. There was no justification for the unreasonable and excessive force that Defendant Dym used to arrest Plaintiff.

34. Plaintiff was transported to the NYPD's Public Service Area ("PSA") 7 precinct.

35. Plaintiff was photographed and her fingerprints were taken.

36. Plaintiff was detained against her will at the PSA 7 precinct.

37. At the precinct, Plaintiff complained about the pain in her elbow, but an officer told her that if she wanted to go to the hospital, it would take longer to process her arrest.

38. Plaintiff was given a sling for her arm.

39. Plaintiff was given a Criminal Court Appearance Ticket, i.e., a summons, signed by defendant Pelengaris, which falsely accused Plaintiff of committing disorderly conduct.

40. Plaintiff was also given two Summonses to Appear for Civil Penalties, both of which were signed by defendant Pelengaris.

41. One of the civil summonses falsely alleged that Plaintiff was “observed in public park after it was closed to the public” in violation of section 1-03(A)(3) of the New York City Park Rules.

42. The other civil summons falsely alleged that Plaintiff “was observed drinking a mixed drink in plastic cup in public place in public view” in violation of section 10-125 of the New York City Administrative Code.

43. Plaintiff should have been released from the PSA 7 precinct after she was issued the summons, but instead, she was transported to Central Booking, where she remained confined against her will.

44. There was no justification for unreasonably prolonging Plaintiff’s detention.

45. Plaintiff eventually saw a judge and was released on her own recognizance.

46. The disorderly conduct charge initiated by defendant Pelengaris’ false accusation was eventually dismissed.

47. On October 9, 2019, plaintiff was required to appear for a hearing before an OATH officer concerning the two civil summonses.

48. After hearing Plaintiff’s testimony, the OATH officer dismissed both summonses.

49. As a direct result of defendant Dym’s conduct, Plaintiff suffered a serious injury to her right elbow, which required surgery.

50. Upon information and belief, the injury to Plaintiff’s elbow will cause her pain and inhibit the full use of her right hand for the rest of her life.

51. The City of New York and the NYPD have long known of the problems with defendant Dym and the need to supervise him or remove him from the NYPD.

52. Before he assaulted Plaintiff, defendant Dym was named in at least nineteen complaints filed with the Civilian Complaint Review Board.

53. Those complaints include forty separate allegations of misconduct, twelve of which were for unlawful use of force.

54. Before he assaulted Plaintiff, defendant Dym was sued twelve previous times:

a. *Holloman v. The City of New York*, No. 11-cv-01624-AKH (S.D.N.Y.) (settled in August 2012 for \$22,000 after a jury found in favor of the plaintiff)

b. *Terry v. The City of New York*, No. 11-cv-09684-JMF (S.D.N.Y.) (08/03/12) (settled in August 2012 for \$40,000).

c. *Gomez et al v. New York City*, No. 12-cv-07989-JLC (S.D.N.Y.) (settled in September 2013 for \$75,000).

d. *Johnson v. City of New York*, No. 15-cv-04149-AJN (S.D.N.Y.) (settled in January 2017, upon information and belief, for \$50,000).

e. *Amalfitano v. The City of New York*, No. 15-cv-09100-LTS-HBP (S.D.N.Y.) (settled in July 2017, upon information and belief, for \$178,000).

f. *Slater et al v. City of New York*, No. 18-cv-05861-GBD (S.D.N.Y.) (Rule 68 judgment entered August 13, 2019 for \$30,006 plus \$22,500 in attorney's fees and costs).

g. *Lasalle v. City of New York*, Index No. 023941/2017E 2017 (Bronx Cnty. Sup. Ct.) (settled for \$860,000).

h. *Oquendo et al. v. City Of New York*, Index No. 303650/2016 (Bronx Cnty. Sup. Ct.) (pending).

i. *Pettiway v. City of New York*, Index No. 036096/2017 (Bronx Cnty. Sup. Ct.) (pending).

j. *Wise v. City of New York*, Index No. 33551/2018E (Bronx Cnty. Sup. Ct.) (pending).

k. *Lopez v. City of New York*, Index No. 27615/2018E (Bronx Cnty. Sup. Ct.) (settled in March 2019 for undisclosed amount).

l. *Foy v. City of New York*, Index No. 28713/2018E (Bronx Cnty. Sup. Ct.) (pending).

55. Those lawsuits cost the City well over \$1 million in settlements, not accounting for the administrative costs of defending the suits and the salaries of City attorneys who represented the City and defendant Dym in those cases.

56. As a direct result of the defendants' conduct, Plaintiff suffered the violation of her federal and state constitutional rights, as well as other rights protected by New York statutes and common law.

57. Among other things, Plaintiff suffered substantial physical pain and suffering, the loss of her liberty, emotional pain and suffering, distress, humiliation, fear, and embarrassment.

FIRST CAUSE OF ACTION
New York State Constitutional Violations

58. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

59. Defendants subjected plaintiff to the foregoing acts and omissions without due process of law, thereby depriving plaintiff of rights, privileges, and immunities guaranteed by Article 1 §§ 1 and 12 of the New York State Constitution, including, without limitation, the rights and privileges secured to all citizens of the State of New York, the right to equal protection of the laws, the right to be free from arrest without probable cause, and the right to be free from unreasonable searches and seizures.

60. As a direct and proximate result of defendants' deprivations of plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, plaintiff suffered the injuries and damages set forth above.

61. Defendant City is vicariously liable for the conduct of the individual defendants as set forth herein.

SECOND CAUSE OF ACTION
42 U.S.C. § 1983 – Federal Constitutional Violations

62. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

63. In committing the acts and omissions complained of herein, the defendant officers acted under color of state law, individually and in concert, to deprive plaintiff of her constitutionally protected rights under the Fourth and Fourteenth Amendments to the United States Constitution, including, but not limited to (a) the right to be free from unreasonable searches and seizures, (b) the right to be free from arrest without probable cause, (c) the right to be free from deprivation of liberty without due process of law, and (d) the right to be free from detention without probable cause.

64. In committing the acts and omissions complained of herein, the defendant officers breached their affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.

65. As a direct and proximate result of the defendant officers' deprivation of plaintiff's constitutional rights, plaintiff suffered the injuries and damages set forth above.

66. The unlawful conduct of the defendant officers was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

67. The City of New York, acting through the NYPD and its agents, officers, and employees, has acted with deliberate indifference to the rights of the people of the City of New York to not be subjected to unconstitutional conduct by defendant Dym.

68. Despite its awareness of numerous complaints against defendant Dym, the City and the NYPD have remained indifferent and failed to adequately supervise or discipline

defendant Dym to ensure that he does not violate the constitutional rights of people of the City of New York.

69. The City's deliberate indifference was the moving force of Plaintiffs' injuries complained of herein.

70. Therefore, the City of New York is liable for the conduct of defendant Dym pursuant to *Monell v. Department of Social Services*, 436 U.S. 658 (1978).

THIRD CAUSE OF ACTION

False Imprisonment

71. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

72. The defendants, through the foregoing acts, caused Plaintiff to be wrongfully detained without good faith, reasonable suspicion, probable cause, or other legal justification,

73. Plaintiff was aware of this detention and did not consent to it.

74. The defendants committed the foregoing acts intentionally, willfully, and with malicious disregard for plaintiff's rights and are therefore liable for punitive damages.

75. The City is vicariously liable for the conduct of the defendant officers.

FOURTH CAUSE OF ACTION

Battery

76. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

77. Without just cause or consent, defendant Dym, acting within the scope and course of his duties as an NYPD police officer, willfully and maliciously used physical force against Plaintiff, causing her injuries.

78. Defendant Dym committed the foregoing acts intentionally, willfully, and with malicious disregard for Plaintiff's rights, and is therefore liable for punitive damages.

79. As a direct and proximate result of defendant Dym's conduct, Plaintiff suffered the injuries and damages set forth above.

80. The City is vicariously liable for this conduct.

FIFTH CAUSE OF ACTION

Negligent Hiring, Screening, Retention, Training, Supervision, and Discipline

81. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

82. The City, acting through the NYPD, has a duty to use reasonable care in the hiring, screening, retention, training, supervision, and discipline of their employees, including police officers.

83. The City and the NYPD failed to discharge this duty.

84. The City and the NYPD knew of multiple lawsuits, complaints, and substantiated findings of misconduct and constitutional violations by defendant Dym prior to the violations of Plaintiffs' rights.

85. The City and NYPD failed to properly investigate and correct the problems with defendant Dym's behavior.

86. The violations of Plaintiffs' rights by defendant Dym was a foreseeable consequence of the City's and NYPD's failure to adequately screen, train, reprimand, or discipline, defendant Dym.

87. As a direct and proximate result of defendant Dym's conduct, Plaintiff suffered the injuries and damages set forth above.

DEMAND FOR RELIEF

WHEREFORE, Plaintiff demands the following relief against the defendants, jointly and severally:

- (a) compensatory damages in an amount just and reasonable and in conformity with the evidence at trial;
- (b) punitive damages from the individual defendants to the extent allowable by law;
- (c) attorneys' fees;
- (d) the costs and disbursements of this action;
- (e) interest; and
- (f) such other and further relief as this Court deems just and proper.

Dated: New York, New York
November 19, 2020

THE LAW OFFICE OF JOSHUA MOSKOVITZ
233 Broadway, Suite 2220
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By: 

Joshua S. Moskovitz, Esq.